

Course content audit export — mt-alcohol-offsale

Exported 2026-05-13. Single-file snapshot of every regulatory claim, statute citation, module narrative, quiz question, exam question, and infographic spec in this course. Built for independent AI verification — paste this whole file into another AI session and ask "verify every regulatory and statutory claim against current law in this state."

Course configuration

- **Title:** Montana Responsible Alcohol Sales & Service - Off-Premises
- **Subtitle:** RASS Off-Premises Track (≥ 1 hour) per HB 157 and ARM 42.13.901-907
- **State:** MT (Montana)
- **Slug:** mt-alcohol-offsale
- **Law reference:** MCA 16-4-1005, 16-4-1006(2)(b) (HB 157, HB 196); ARM 42.13.901-907
- **Regulator:** Montana Department of Revenue, Cannabis and Alcohol Regulation Division (CARD)
- **Regulator contact:** DORCARDRASS@mt.gov
- **Approval status:** training_only
- **Approval status note:** Prepared for submission to Montana CARD for approval as a private RASS training program under ARM 42.13.906. Off-premises track required by HB 157 (eff. 1/1/2026); covers register-side ID verification, closed-container sales, the HB 211 third-party delivery overlay, and the Montana statutes that apply to off-premises retail.
- **Cert prefix:** CRMT
- **Cert validity:** 3 years
- **Min hours:** 1
- **Total est minutes:** 60
- **Languages:** en, es
- **Exam:** 25 of 40, 80% to pass, proctored=false, retakes=unlimited
- **Min content minutes:** 60

Study Buddy topic keywords (used by the AI tutor — should reflect the law accurately):

- register-side ID verification
- Montana acceptable IDs (ARM 42.13.902) including digital IDs (HB 196), tribal IDs, and permanent resident cards
- ARM 42.13.101 progressive penalties for sales to minors
- closed-container sales
- Montana sale hours (MCA 16-3-304)
- no-below-posted-price rule
- HB 211 third-party delivery overlay

- 60-day-from-hire and 3-year renewal cycle

Module list (from course-config):

ID	Title	Type	Est. min
01	Welcome and Course Overview	mixed	5
02	Alcohol Effects and Spotting Impaired Purchasers at the Register	universal	10
03	Checking Identification (Including Digital IDs)	mixed	20
04	Sales to Minors and Decoy Tactics	state_specific	10
05	Brief Dram Shop and the Sale-to-Visibly-Intoxicated Rule	state_specific	5
06	Hours, Sealed Containers, and the HB 211 Delivery Overlay	state_specific	10

Learning outcomes

Knowledge outcomes:

- **K1:** Montana RASS off-premises framework: MCA 16-4-1005 (60-day, 3-year), MCA 16-4-1006(2) (b) (off-premises track per HB 157), ARM 42.13.901-907
- **K2:** Effects of alcohol on the body relevant to identifying impaired purchasers at the register
- **K3:** Standard drink equivalency and Montana's >0.5% ABV definition
- **K4:** MCA 16-3-301(4)(b) and 16-6-304: 'actually, apparently, or obviously intoxicated' standard at the point of sale
- **K5:** Acceptable forms of identification per ARM 42.13.902, including digital IDs (HB 196) and tribal IDs
- **K6:** Strategies underage buyers use to obtain alcohol off-premise (proxy buyers, shoulder-tap, fake IDs at register)
- **K7:** ARM 42.13.101 progressive penalty schedule and MCA 16-6-305 criminal penalties
- **K8:** MCA 27-1-710 dram shop applied to off-premises sales
- **K9:** Hours of sale (MCA 16-3-304); off-premises sealed-container rules; the no-below-posted-price rule
- **K10:** HB 211 third-party alcohol delivery overlay: what off-premises retailers need to know

Performance outcomes:

- **P1:** Verify a Montana ID at the register, including digital IDs
- **P2:** Calculate the latest legal DOB for today
- **P3:** Identify and refuse a proxy-buyer attempt
- **P4:** Refuse the sale to a visibly intoxicated person at the register
- **P5:** Apply the off-premises hour rules and sealed-container requirement

Module 01: Welcome and Course Overview

What to expect from your Montana RASS Off-Premises training

Estimated minutes: 5 · Type: mixed

Module learning outcomes:

- K1 (knowledge): Off-premises RASS framework (*MCA 16-4-1005, 16-4-1006(2)(b)*)

Section s1: Welcome (scope: universal)

[text] Welcome to CertReady's Montana Responsible Alcohol Sales and Service training, the off-premises track. Over the next hour you'll learn the practical knowledge and Montana-specific law you need to sell alcohol legally and safely at a grocery store, c-store, or any other off-premises retailer.

[callout/info] **About 'RASS'.** RASS stands for Responsible Alcohol Sales and Service. As of January 1, 2026, the Act is officially named the Responsible Alcohol Sales, Service, and Delivery Act (HB 211 added 'Delivery' to cover third-party drivers), but the industry still calls the program RASS.

[callout/law] **MCA 16-4-1006(2)(b):** Off-premises training programs must be at least HALF the time of on-premises programs. With the on-premises track at 2 hours, the off-premises track is 1 hour. The course holds the final exam locked until you've spent the full 60 minutes on content.

[callout/tip] **Did your employer sign you up?** If your store or chain is using CertReady, they have a business dashboard at certready.org/business. They can see your training progress in real time, get notified when you pass, and see your expiration date so they can remind you when it's time to renew. You don't need to do anything for this; if they enrolled you with their CertReady code, the link is already set up. You'll still get your own copy of the certificate by email.

[text] What's different about off-premises? You're at a register. Most decisions happen in seconds: Is this ID real? Is the customer 21? Are they a proxy buyer for a minor outside? Can I sell beer at this hour? The off-premises track focuses on register-side judgment and the new HB 211 third-party delivery overlay.

Section s2: What's covered (scope: universal)

[list/numbered] Modules • **Module 2 — Alcohol effects and spotting impaired purchasers.** Register-side cues for someone who has already had too much. • **Module 3 — Checking IDs at the register.** The Montana acceptable list including digital IDs (new in 2025) and tribal IDs. • **Module 4 — Sales to minors and decoy tactics.** Penalty schedule, proxy buyers, shoulder-taps, and what to do when a customer admits they're buying for a minor. • **Module 5 — Brief dram shop and the sale-to-visibly-intoxicated rule.** Off-premise retailers face dram shop exposure too. The short version. • **Module 6 — Hours, sealed containers, and the HB 211 delivery overlay.** When you can sell, sealed-container rules, third-party delivery (DoorDash, Uber Eats, Instacart, Grubhub).  infographic spec: Course-roadmap timeline showing all 6 modules: M1 Welcome, M2 Alcohol Effects & Register Cues, M3 Checking IDs, M4 Sales to Minors, M5 Brief Dram Shop, M6 Hours + HB 211 Delivery, plus the Final Exam. Horizontal stepped path with module title, est. minutes, and a small register/cashier-themed icon per step. Brand: navy header, teal accent, slate body. Used as the visual hook on the off-premises Welcome page so cashiers see the whole arc of the course at a glance. CertReady wordmark in a corner.

Module quiz

Quiz: Welcome Quiz (pass 80%) Qq1: How long is the off-premises RASS track minimum? a) 30 min b) 1 hour ✓ c) 2 hours d) 4 hours Qq2: When must a new off-premises employee complete training (MCA 16-4-1005)? a) Before first shift b) Within 30 days c) Within 60 days ✓ d) Within 90 days Qq3: Off-premises training in Montana must be at least half the time of on-premises training. true) True ✓ false) False Qq4: How often must Montana RASS training be renewed? a) Annually b) Every 2 years c) Every 3 years ✓ d) Every 5 years

Module 02: Alcohol Effects and Spotting Impaired Purchasers at the Register

How to recognize a customer who's already had too much when they walk up to buy more

Estimated minutes: 10 · Type: universal

Module learning outcomes:

- K2 (knowledge): Effects of alcohol relevant to register-side detection (*ARM 42.13.907(1)(a)*)
- K3 (knowledge): Standard drink + Montana >0.5% ABV definition (*MCA 16-1-106(4)*)
- K4 (knowledge): Sale-to-intoxicated standard at the register (*MCA 16-3-301(4)(b)*, *16-6-304*)

Section s1: What counts as alcohol (scope: state)

[text] Montana defines an alcoholic beverage as anything **over 0.5% alcohol by volume** (MCA 16-1-106(4)). At an off-premises register, that means every product on the alcohol shelves and several that look like soft drinks but aren't.

[list/bullet] What you'll ring up that counts as alcohol • **Beer** — domestic, craft, imports, anything in the cooler aisle • **Wine** — bottled, boxed, single-serve cans (yes, the canned wine still counts) • **Hard seltzer** — ABV typically 5%, some lines 9%+ • **Hard cider** — usually 4–7% ABV • **Ready-to-drink products / RTDs** — these may be alcohol products, but some are spirits-based and may not be authorized for every off-premises retailer. Ring only products your store is licensed and approved to sell. • **Hard kombucha** — at 3–9% ABV, the alcoholic version is on the alcohol side; the under-0.5% version is not. Read the label. • **Spirits** — only available at agency liquor stores. If you're at a grocery or c-store, you do NOT sell spirits

[callout/info] **The 0.5% line in practice.** Anything you scan that has "alcohol by volume" on the label, with a number above 0.5%, triggers the rules in this course: ID check, sale-to-intoxicated rule, hours, sealed-container rules. "Non-alcoholic beer" at 0.4% does not. **Read the label if you're not sure.**

Section s2: The Montana standard at the register (scope: state)

[callout/law] **MCA 16-3-301(4)(b) and 16-6-304:** It is unlawful to sell or give alcoholic beverages to a person who is **actually, apparently, or obviously intoxicated**. The rule applies AT the register, not just when serving a drink.

[text] The Montana three-part standard ('actually, apparently, or obviously intoxicated') was written for service at a bar, but it applies to off-premises retail too. **If a customer in your line is slurring, swaying, or smells strongly of alcohol, you cannot sell them another six-pack.** The 'apparent' test is your professional judgment as a clerk: what a reasonable cashier would conclude from what they see in the 30 seconds the customer is at your register.

[list/bullet] Register-side cues — what to scan for in 30 seconds • **Slurred or thick speech** when answering "card or cash?" or asking the price • **Difficulty pulling cash or counting change** — fingers don't cooperate • **Strong smell of alcohol** from across the counter, even before they speak • **Glassy or bloodshot eyes**; trouble making eye contact • **Swaying, leaning on the counter, or grabbing the candy display** for balance • **Loud, repetitive, or overly familiar behavior** with you or other customers in line • **Customer is followed in by someone telling them "don't get more"** — a passenger or family member trying to intervene is a strong tell

[callout/tip] **One sign isn't enough; a pattern is.** A single cue could be allergies, exhaustion, or just how that person normally talks. The Montana standard is met when **two or more cues stack at the same time**: slurring AND swaying, glassy eyes AND repetitive talk, smell-of-alcohol AND difficulty counting change. Watch for the cluster.

Section s3: Refusing the sale (scope: universal)

[text] If you spot the cues, the script is short. **"I can't sell this to you tonight, sorry. The law's on me."** Don't debate. Don't justify. Don't argue. If they push, call your manager. Document the refusal in the store's incident log.

[list/bullet] Refusal scripts that work at the register • "I can't sell this tonight, sorry. The law's on me, not on you." • "I'm not able to ring this up tonight. Manager can talk to you if you'd like." • "Tonight isn't going to work for the alcohol — coffee and the snack aisle are open." • "I want to keep my license. I can ring up everything else, just not this."

[callout/tip] **"The law's on me."** This phrase shifts the refusal away from you-versus-them. It's a legal floor, not a personal judgment. Most customers walk away. **The ones who escalate are the ones for whom you call the manager** — that's the manager's job, not yours.

[callout/warning] **Document every refusal.** A short note in the store's incident log:

• Date and time • Customer description (gender, age range, what they were buying) • Cues you observed (slurring, smell, etc.) • What you said and what they did next • Your initials

If the customer leaves and gets in a crash, your incident-log entry is the store's first line of defense under the Montana sale-to-intoxicated rule.

Section s4: Two scenarios at the register (scope: universal)

[scenario] Q: What's the right call? - Sell it — he's at the register, not driving. — feedback: Wrong. Slurring + smell-of-alcohol + the friend's intervention are at least three cues stacking. Montana's apparent-intoxication standard applies at the register. Selling anyway creates criminal, administrative, and civil risk

under MCA 16-3-301(4)(b) and MCA 16-6-304. - Refuse: "I can't sell this tonight, sorry. The law's on me." Document the refusal. Offer to ring up the rest of his items. ✓ correct — feedback: Right. The cues clearly stack. Refuse the alcohol, ring up anything else, document. The friend's intervention isn't required for the refusal but it makes the cue cluster easier to defend. - Sell it but tell him to take a Lyft home. — feedback: Wrong. Once you ring it up, the sale is on the record. Recommending a Lyft is nice but doesn't undo the violation. - Sell only a six-pack instead of the 24-pack. — feedback: Wrong. Less alcohol is still alcohol. The sale-to-intoxicated rule doesn't have a quantity carve-out.

[scenario] Q: What's the right call? - Sell it. The customer at the register isn't intoxicated. — feedback: Wrong. The customer at the register openly told you the alcohol is for his obviously-intoxicated friend. If a customer tells you the alcohol is for an obviously intoxicated person, you now have knowledge that the alcohol may be furnished to someone you could not lawfully sell to directly. Refuse the proxy purchase, document it, and call a manager if needed. - Refuse politely. "I can't sell this if it's for him tonight. I can sell you something for yourself if you'd like." ✓ correct — feedback: Right. The customer announced the proxy purchase out loud. Refuse the proxy purchase, document, and offer to sell to the person at the register for themselves only — that's the right line. - Sell it but tell the friend not to drink it tonight. — feedback: Wrong. You can't control what they do once it leaves the store. The sale creates serious legal risk because you were told the alcohol was for someone you could not lawfully sell to directly. - Sell it; ID-check the swaying friend if you can. — feedback: Wrong. The age question doesn't override the visible-intoxication question. Both apply.

Module quiz

Quiz: Module 2 Quiz (pass 80%) Qq1: Under MCA 16-1-106(4), what makes a beverage 'alcoholic'? a) More than 0.5% ABV ✓ b) More than 1% ABV c) More than 3.2% ABV d) More than 5% ABV Qq2: Which standard does Montana use at the point of sale? a) BAC over 0.08 b) Actually, apparently, or obviously intoxicated ✓ c) Visibly impaired only d) Unable to drive Qq3: Which is NOT a register-side cue of intoxication? a) Difficulty counting change b) Strong smell of alcohol c) Asking the price of an item ✓ d) Swaying or leaning on the counter Qq4: If a customer at your register seems intoxicated but says they're 'fine,' you can sell them alcohol. true) True false) False ✓ Qq5: A sober customer tells you the alcohol they're buying is for their obviously-intoxicated friend. What's the right call? a) Sell it — the customer at the register isn't intoxicated b) Refuse the proxy purchase; offer to sell only to the person at the register for themselves ✓ c) Sell only half the quantity d) Sell it but ID-check the friend Qq6: Write a one-line refusal script you would use on an apparent-intoxicated customer at the register. keywords: sorry, law, can't sell, tonight, manager, license, switch, law's on me, policy

Module 03: Checking Identification (Including Digital IDs)

Montana's acceptable ID list per ARM 42.13.902, with HB 196 digital IDs and tribal IDs — register edition

Estimated minutes: 20 · Type: mixed

Module learning outcomes:

- K5 (knowledge): Acceptable forms of ID per ARM 42.13.902 (*ARM 42.13.902*)
- K6 (knowledge): Underage strategies in off-premise retail (*ARM 42.13.907(1)(d)*)
- P1 (performance): Verify a Montana ID at the register, including digital (*ARM 42.13.902, MCA 16-4-1006(1)(c)*)
- P2 (performance): Calculate latest legal DOB (*ARM 42.13.907(1)(c)*)

Section s1: Acceptable IDs in Montana (scope: state)

State note: ARM 42.13.902 is a closed list. Anything not on it cannot be accepted.

[text] Montana **ARM 42.13.902** is a closed list. Anything not on it, you don't accept — even if it has a photo, a DOB, and looks official.

[list/bullet] Acceptable forms (ARM 42.13.902) • **Current state-issued or Canadian driver's license / ID card** — any US state or Canadian province, must be unexpired • **Current armed-services ID card** — active duty, reserve, retired, or military dependent (DoD-issued) • **Valid US passport or US passport card** — both work; the wallet-sized passport card is fully acceptable • **Valid Montana temporary or probationary driver's license / ID** — the paper interim issued while the permanent card is mailed • **Valid Montana tribal ID** — issued by any of the seven federally recognized Montana tribes • **Current US permanent resident card** (Form I-551 / 'green card') — federally issued credential showing photo, date of birth, and valid expiration • **Government-certified digital ID** — added by HB 196, effective October 1, 2025  infographic spec: Acceptable-ID poster optimized for register/cashier reference: thumbnails for each acceptable ID category (state/Canadian DL or ID, armed-services ID, US passport/passport card, Montana temporary/probationary DL or ID, Montana tribal ID, US permanent resident card, government-certified digital ID) with a one-line label per category. Brand colors. Often printed and posted next to the register.

[callout/info] **The seven federally recognized Montana tribes whose IDs are accepted:**

• Blackfeet Nation • Chippewa Cree (Rocky Boy's) • Confederated Salish & Kootenai (Flathead) • Crow • Fort Belknap (Assiniboine & Gros Ventre) • Fort Peck (Assiniboine & Sioux) • Northern Cheyenne

Out-of-state tribal IDs are NOT on the list.

[callout/warning] **NOT acceptable — refuse on sight:**

• Photocopies or photos of any ID • Expired ID of any kind • School / college / university IDs • Library cards, warehouse-club cards (Costco, Sam's), voter-registration cards • Birth certificates (no photo) • Out-of-state tribal IDs • Screenshots of a digital ID (the credential must verify, not be a static image)

"It's all I have" is not a valid reason to make an exception.

Section s2: Inspecting at the register (scope: universal)

[list/numbered] The check sequence • **Take it in your hand.** Don't read it through a wallet or phone case. You need to feel the card. • **Photo matches.** Compare hairline, ear shape, eye spacing, and jaw to the picture. Hair color/style change; bone structure doesn't. • **Calculate the DOB.** Today minus 21 years

is the line. If the DOB is later, refuse. • **Check expiration.** Expired = not acceptable. "This expired in March, I can't take it tonight." • **Feel the card.** Real cards have uniform thickness, sharp corners, no peeling lamination, no bubbles. • **Tilt it.** Holographic state seal should shift in the light. Flat / printed-on holograms are a fake-ID tell. • **Cross-check with a question** if anything feels off: "What's your zip code?" should be instant for a real owner.

[callout/tip] **DOB math, made easy.**

- Subtract 21 from the current year
- Use today's month and day
- Anyone whose DOB is **after** that date is under 21

Example for May 8, 2026: cutoff is **May 8, 2005**. Born May 8, 2005 or earlier = legal. Born May 9, 2005 or later = under 21.

[callout/info] **The vertical-vs-horizontal layout tell.** Most US states issue licenses in **horizontal layout for adults (21+)** and **vertical layout for minors (under 21)**. **A vertical license = check the DOB even more carefully.** A horizontal license held by someone who looks young still gets the full inspection — but a vertical license should never be cleared without confirming the customer crossed 21 since the card was issued.

Section s3: Digital IDs at the register (HB 196) (scope: state)

[text] Effective **October 1, 2025**, Montana accepts government-certified digital IDs. The customer holds them in **Apple Wallet, Google Wallet, or a state-specific app**. To be valid, the credential must be the **OFFICIAL state credential** — not a screenshot of a license, and not a third-party app like ID.me.

[list/numbered] Digital ID check sequence • **Customer presents through the official wallet or government-approved app** — a screenshot or static image won't work; the official presentation is interactive (the live credential responds to your verification step) • **Look for the official state seal/logo** — generic 'license' icons are not acceptable • **Photo matches** — same rules as physical ID • **DOB math** — apply the same cutoff • **Check expiration** — matches the underlying physical ID • **If they hand you their unlocked phone** instead of presenting the credential, ask them to present it properly. A phone screen showing a website is not a digital ID

[callout/warning] **Falsifying a digital ID is a separate offense** under MCA 16-6-305 (HB 196 amendment). If you suspect a fake digital ID:

- Refuse the sale
- Document the incident in the log
- Don't try to seize or hold the phone
- Call the manager

Section s4: Off-premises decoy tactics (scope: universal)

[list/bullet] Common at off-premises retail • **Borrowed ID** from older sibling/friend with similar look. Photo close but not exact — ear shape and hairline rarely match. • **Shoulder-tap** — a minor outside asks an adult to buy alcohol for them. Watch the entrance: if a customer tells you the alcohol is for someone outside, that's a proxy purchase admission. • **Proxy buyer in car** — minor enters first to scope out the bottle, then their adult friend comes in to buy. The minor is back outside before the sale rings up. •

Group distraction — one customer asks for help finding something while another slips alcohol past the register. Door alarms catch some; alert cashier-side awareness catches more. • **Online-purchased fake ID** — often with the wrong state's hologram, a slightly off typeface, or a vertical layout under a 25+ DOB. Read the layout against the DOB. • **The crowd-rush** — a group enters together; the minor hangs at the back while the older friend buys in front. Each transaction with alcohol gets ID-checked, no exceptions.

[callout/info] **Watch the parking lot.** A pattern that catches a lot of off-premise minor sales: the customer pays cash and quickly walks out to a waiting car with people who look much younger. If the same vehicle keeps coming back with different "buyers," that's a fake-ID-ring or proxy-buyer pattern. Note the plate, tell the manager, and call DOR if it persists.

Section s4b: Two scenarios at the register (scope: state)

[scenario] Q: Sell or refuse? - Sell — they turned 21 on March 15, 2026, today is after that date ✓ correct — feedback: Right. The math is exact: today minus 21 = May 8, 2005. Their DOB (March 15, 2005) is BEFORE that cutoff, so they're 21+. Sell. - Refuse — they're under 21 — feedback: Wrong. They turned 21 in March of this year. Today is May, after their birthday. Sell. - Refuse because the year is the cutoff year — feedback: Wrong. The DOB math uses the full date, not just the year. They're 21. - Ask for a second ID just in case — feedback: Optional, but not required. The math is clean.

[scenario] Q: What's the right call? - Stop the sale and refuse: the parking-lot pattern + the teen entering to ask is a classic shoulder-tap setup ✓ correct — feedback: Right. Three under-21-looking people waiting in the parking lot, the buyer comes in alone, then a minor enters as the sale rings up = high-confidence proxy purchase. Stop, refuse, document, optionally call the manager. Note the plate. - Complete the sale — the buyer is over 21 — feedback: Wrong. Once you have knowledge that the alcohol is going to a minor (the parking-lot pattern + the minor entering during the transaction is enough), completing the sale creates direct legal risk under MCA 16-6-305. The fact that the named buyer is 21+ does not protect the cashier when the proxy nature is known. - Confront the teens — feedback: Wrong. Don't confront — refuse the sale, let them leave, note the vehicle, tell the manager. Confrontation is the manager's call. - Ask the teen for ID before completing the buyer's sale — feedback: Wrong. The teen isn't the buyer. The right move is refuse the sale to the proxy buyer, regardless of what the teen has on them.

Section s5: Refusing cleanly at the register (scope: universal)

[list/bullet] Refusal scripts that work at the counter • **Expired ID:** "This expired in March — I can't take it tonight. Got anything else?" • **Not on the acceptable list:** "School IDs aren't on Montana's list. I need a driver's license, passport, or military ID." • **Suspicious fake:** "I'm not able to verify this one tonight. Sorry." Hand it back, do not seize. Document. • **Photo doesn't match:** "The photo doesn't match. I can't verify this is you. Got another ID?" • **ID in the car:** "No ID, no sale. We'll be here when you come back with it." • **Proxy admission:** "I can't ring this up if it's not for you. I can sell to you for yourself only."

[callout/warning] **Don't seize a suspected fake ID.** Hand it back. Some cashiers grab the card and say "I'm keeping this." Keeping a suspected fake ID can create legal risk, including a possible property claim. The safer course is to hand it back, refuse, and document.

- Hand the ID back • Refuse the sale • Document description, time, ID details (state, ID number, name) • Note the description of the customer for a possible police report

Let law enforcement decide what happens to the card.

Module quiz

Quiz: Module 3 Quiz (pass 80%) Qq1: Which is NOT acceptable as ID under ARM 42.13.902? a) Canadian driver's license b) US passport card c) Photocopy of ID ✓ d) Montana tribal ID Qq2: What did HB 196 add to the acceptable-ID list? a) School IDs b) Government-certified digital IDs ✓ c) Voter cards d) Library cards Qq3: If today is May 8, 2026, the latest DOB still legal to sell to is: a) May 8, 2004 b) May 8, 2005 ✓ c) January 1, 2005 d) May 8, 2006 Qq4: A screenshot of a state ID counts as a digital ID under HB 196. true) True false) False ✓ Qq5: An adult tells the cashier 'this 6-pack is for my buddy waiting outside, here's his money.' Best response? a) Sell to the adult; they're 21+ b) Refuse the sale — this is a proxy-buyer admission ✓ c) Ask the buddy to come in and show ID d) Sell at half price Qq6: A vertical-layout US driver's license is typically issued to whom? a) Adults age 21 and older b) Holders under age 21 ✓ c) Commercial drivers d) Military personnel Qq7: How should a cashier handle a suspected fake ID? a) Confiscate the card and tell the customer it's evidence b) Hand the ID back, refuse the sale, document the incident ✓ c) Call 911 immediately d) Sell anyway and report later Qq8: Name two off-premises decoy tactics minors use to obtain alcohol. keywords: shoulder-tap, shoulder tap, proxy buyer, borrowed ID, older sibling, older friend, group distraction, fake ID, online, crowd rush, parking lot, in car

Module 04: Sales to Minors and Decoy Tactics

ARM 42.13.101 progressive penalties; how to spot and refuse decoys, proxy buyers, and shoulder-taps

Estimated minutes: 10 · Type: state_specific

Module learning outcomes:

- K6 (knowledge): Underage tactics off-premise (*ARM 42.13.907(1)(d)*)
- K7 (knowledge): ARM 42.13.101 penalty schedule (*ARM 42.13.101*)
- P3 (performance): Refuse a proxy-buyer attempt (*MCA 16-6-305*)

Section s1: What the law says (scope: state)

[callout/law] **MCA 16-6-305(1)**: It is unlawful to sell, give, or otherwise provide alcoholic beverages to a person under 21. Personal criminal penalty for the cashier: up to **\$500 fine**, up to **6 months jail**, or both.

[list/numbered] ARM 42.13.101 progressive penalty (per offense in 3 years) • **1st offense**: \$250 fine • **2nd offense**: \$1,000 fine • **3rd offense**: \$1,500 fine + up to **20-day license suspension** • **4th offense**: **license revocation**  infographic spec: Penalty-card poster: 4 stacked rows showing offense # → fine → license consequence. Brand colors. Used at register break room or behind register as a visible reference.

[callout/warning] **Consequences from one sale, by who carries them:**

• **Cashier — criminal misdemeanor** under MCA 16-6-305 (up to \$500 fine and/or 6 months jail) — personal liability • **Cashier — loss of job** under store policy almost universally • **Licensee (store) — administrative penalty** under ARM 42.13.101 (the progressive fine/suspension/revocation schedule above) • **Licensee (store) — possible civil dram-shop exposure** under MCA 27-1-710 if the statutory triggers are met (e.g., sale-to-minor without reasonable age verification) and a third party is later injured

One missed ID check can produce all of these on the cashier and the store.

Section s2: Decoy and compliance check programs (scope: state)

[text] **Montana DOR runs compliance checks** at off-premises retail. A compliance-check participant — often under 21 and supervised by enforcement staff — walks in and tries to buy alcohol. They typically use their real ID and do not lie about their age. **The check happens with no warning.** If you sell, the citation is real and goes on the licensee's record. If you ID and refuse, you pass.

[list/bullet] What a real compliance check looks like • **The decoy uses their REAL ID** — they don't carry a fake. They show their real DOB. • **They don't lie about their age** when asked. The whole point is to test whether you do the ID check. • **The investigator is in the parking lot** observing. Sometimes inside the store too, in plain clothes. • **The decoy buys exactly one item** — usually beer or hard seltzer — pays cash, leaves. • **If you sold:** the investigator will return within minutes to issue the citation. • **If you carded and refused:** you pass. Some stores reward cashiers for compliance-check passes.

[callout/tip] **Treat every sale like it's a compliance check.**

• Card anyone who LOOKS under 30, every time, no exceptions • Do the DOB math, not just glance at the year • Check expiration • Cross-check with a question if anything feels off

The cost of the habit is 5 seconds. The cost of skipping is a fine, your job, and a personal misdemeanor.

Section s3: Proxy buyers and shoulder-taps (scope: universal)

[list/bullet] Proxy and shoulder-tap red flags • **Customer mentions out loud** that the alcohol is for someone outside, in the car, or at home • **A young person hangs near the alcohol section** while an older person waits or comes to the register • **An adult is asked at the door** by a younger person to "go in for me" • **Customer pays with cash from a different person's hand** — money was just handed to them by someone outside or younger • **The same vehicle keeps returning** with different "buyers" who all walk out to the same group • **Buyer is unfamiliar with the product** — picks the cheapest 30-pack of an obscure brand instead of their usual

[scenario] Q: What do you do? - Complete the sale — the customer at the register is over 21 — feedback: Wrong. He admitted out loud he's buying for a minor. That's a proxy-buyer admission. Completing the sale once you know the alcohol will be provided to someone under 21 creates direct legal risk under MCA 16-6-305 — refuse and document. - Refuse the sale, calmly explain why, document ✓ correct — feedback: Right. Once a customer announces an intent to provide alcohol to a minor, the sale is unlawful. Refuse

and write it up. Offer to sell to him for himself only. - Sell, but ask the nephew to come show ID first — feedback: Wrong. The nephew is admittedly under 21. There's no path to a legal sale here. - Pretend you didn't hear and complete the sale — feedback: Wrong. Pretending doesn't unwind the legal violation. You heard it.

[scenario] Q: What's the right next step? - Document the incident, alert the manager, refuse future sales to that 26-year-old ✓ correct — feedback: Right. You can't undo the sale that already happened, but you create a paper trail. The pattern (refused minor + new buyer + visible handoff) is classic proxy. Note the 26-year-old's description and any vehicle plate. Tell the manager so they can call DOR if it repeats. - Run out and confront him in the parking lot — feedback: Wrong. Confrontation in the parking lot exposes you and the store to a different set of legal risks. Document and let the manager handle the trespass decision. - Nothing — the sale was to a 26-year-old, the rest is on him — feedback: Wrong. If you SAW the proxy purchase happen and sell to the same person tomorrow anyway, the store may face the same practical enforcement risk as a direct sale to a minor. Document and refuse future sales. - Call 911 right away — feedback: Reasonable in egregious cases (e.g., active fake-ID-ring suspicion or repeat behavior), but for a single after-the-fact proxy buy, document-and-flag is the standard response. Manager can call DOR if pattern repeats.

Module quiz

Quiz: Module 4 Quiz (pass 80%) Qq1: Under ARM 42.13.101, the 1st sale-to-minor fine in a 3-year window is: a) \$100 b) \$250 ✓ c) \$500 d) \$1,000 Qq2: What happens to the licensee on a 4th sale-to-minor offense? a) \$5,000 fine b) License revocation ✓ c) 30-day suspension d) Mandatory retraining Qq3: A customer who admits at the register that the alcohol is for someone under 21 should still be sold to as long as the buyer themselves is over 21. true) True false) False ✓ Qq4: Which is a shoulder-tap red flag at a Montana off-prem retailer? a) An adult is asked at the door 'go in for me' ✓ b) An adult walks in alone c) An adult buys a single beer d) An adult uses a credit card Qq5: In a Montana DOR compliance check, the underage decoy will: a) Use a fake ID and lie about their age b) Use their real ID and not lie about their age ✓ c) Refuse to show any ID d) Pretend to be a Montana resident Qq6: Name two consequences a cashier personally faces from a confirmed sale-to-minor offense. keywords: criminal, misdemeanor, fine, \$500, jail, 6 months, lose job, fired, termination, civil, dram shop, 27-1-710

Module 05: Brief Dram Shop and the Sale-to-Visibly-Intoxicated Rule

Off-premises retailers face dram shop exposure too. Here's the short version.

Estimated minutes: 5 · Type: state_specific

Module learning outcomes:

- K8 (knowledge): MCA 27-1-710 applied to off-premise sales (*MCA 27-1-710*)
- P4 (performance): Refuse the sale to a visibly intoxicated person (*MCA 16-3-301(4)(b)*)

Section s1: Off-premise dram shop exposure (scope: state)

[text] Bars and restaurants think of dram shop as their problem. **It isn't only theirs.** If you sell beer or wine to an obviously drunk customer who then drives off and crashes, the off-premise retailer can be sued under **MCA 27-1-710**. The same three triggers that apply to a bar apply to your register.

[list/numbered] MCA 27-1-710 three triggers • **Sale to underage** without reasonable age verification • **Sale to a visibly intoxicated person** • **Forced or coerced consumption** / fraud about alcohol content

[callout/info] **Off-premise example.** A clearly drunk customer comes into a c-store at 11 p.m., buys a 12-pack of beer, drives off, and crashes a quarter mile away. The injured driver's family can sue the c-store under **MCA 27-1-710** if they can show the cashier knew or should have known the customer was visibly intoxicated. "He was just buying it for later" is not a defense if the cues were stacked at the register.

[callout/info] **The damage caps are the same as on-premise.**

• **\$250K cap on noneconomic damages** per event (pain, suffering, loss of consortium) • **\$250K cap on punitive damages** per event • **Economic damages** (medical, lost wages) **uncapped** • **Plaintiff must serve certified-mail notice within 180 days** of the sale or service; missing the 180-day window forfeits the dram-shop claim • **2-year statute of limitations** for the civil action itself

A store's exposure on a serious crash easily exceeds the caps because the medical damages are uncapped.

Section s2: Refusing at the register (scope: universal)

[text] If a customer in line is showing intoxication cues, **refuse the sale**. Document the refusal: time, customer description, cues you observed, what you said. The **five seconds** it takes you to refuse can be the difference between a regular Tuesday and significant dram-shop exposure on your store.

[callout/tip] **Refusal scripts that work at the register:**

• "I can't sell this tonight, sorry. The law's on me, not on you." • "Tonight isn't going to work for the alcohol — coffee and the snack aisle are open." • "I want to keep my license. I can ring up everything else, just not this."

Don't debate. Don't justify. If they push, call the manager. The phrase **"the law's on me"** is the magic phrase: it shifts the refusal from you-versus-them to a legal floor that's not your call to make.

[scenario] Q: What do you do? - Sell — he's at the register, not driving — feedback: Wrong. Smell + sway + slur = three cues stacking. The Montana standard applies at the register. Selling anyway creates serious criminal, administrative, and civil risk. MCA 16-3-301(4)(b) prohibits the sale, and MCA 27-1-710 can create civil dram-shop exposure if the statutory triggers are met and injury follows. - Refuse the sale to him; offer to ring up the sober friend if he wants to buy for himself ✓ correct — feedback: Right. Refuse the intoxicated customer. The sober friend can buy for himself only — but if he says it's for the intoxicated friend, that becomes a proxy refusal too. Document. - Sell only to the friend, regardless of admission — feedback: Close, but only if the friend doesn't say it's for his intoxicated companion. If they admit the proxy nature, refuse. - Sell, but ask them to take a Lyft home — feedback: Wrong. Once you ring it up, the sale is on the record. The Lyft suggestion doesn't undo the violation.

Module quiz

Quiz: Module 5 Quiz (pass 80%) Qq1: Which is NOT a MCA 27-1-710 dram shop trigger? a) Sale to underage without reasonable check b) Sale to visibly intoxicated person c) The customer drove home after ✓ d) Forced or coerced consumption Qq2: Off-premise retailers are subject to MCA 27-1-710? a) No, only on-premise establishments b) Yes, the same triggers apply ✓ c) Only for spirits d) Only after 10 p.m. Qq3: The Montana cap on noneconomic dram-shop damages per event is: a) \$50,000 b) \$100,000 c) \$250,000 ✓ d) \$1,000,000 Qq4: A clerk who refuses a visibly intoxicated customer at the register and documents the refusal helps protect the store from a future MCA 27-1-710 claim. true) True ✓ false) False Qq5: Are economic damages (medical bills, lost wages) capped under Montana dram-shop? a) Yes, capped at \$250,000 b) Yes, capped at \$1,000,000 c) No — economic damages are uncapped ✓ d) Only if the plaintiff is a Montana resident

Module 06: Hours, Sealed Containers, and the HB 211 Delivery Overlay

MCA 16-3-304 sale hours; sealed-container takeout; HB 211 delivery for off-premise retail

Estimated minutes: 10 · Type: state_specific

Module learning outcomes:

- K9 (knowledge): Hours of sale and sealed-container rules (*MCA 16-3-304*)
- K10 (knowledge): HB 211 third-party delivery overlay for off-premise retailers (*Title 16, ch. 4, part 10, MCA (HB 211)*)
- P5 (performance): Apply hours and sealed-container rules (*MCA 16-3-304*)

Section s1: Hours of sale (scope: state)

[callout/law] **MCA 16-3-304:** Off-premise retailers (grocery, c-store, off-prem beer/wine) may sell from **8 a.m. to 2 a.m.** seven days a week, including Sundays. Local ordinances may impose stricter hours; follow whichever rule applies at your location.

[list/bullet] What you can sell, and where • **Beer and table wine** at grocery stores and c-stores — where 'table wine' is wine containing **less than 16% ABV** • **Hard cider and hard seltzer** may be sold only if they fall within the licensee's authorized beer/table-wine product categories. **Some ready-to-drink (RTD) cocktails are spirits-based and may NOT be sold by a standard off-premises beer/wine retailer.** Follow your store's approved product list and manager guidance. • **Distilled spirits** off-premise are sold **ONLY** at **agency liquor stores** (state-contracted retailers) per **MCA 16-2-101** • **Agency liquor stores** have required minimum hours Tuesday–Saturday and optional Sunday/Monday/holiday hours

[callout/tip] **The 2 a.m. close in practice.**

- **Alcohol cannot be rung up after 2:00 a.m.** — once the clock strikes 2, no more alcohol on receipts.
- **Customers in line at 1:59** can be served, but the alcohol transaction must complete before 2:00. • **If**

the transaction is not complete before 2:00, remove the alcohol from the sale. • Practical: **stop ringing alcohol at 1:55** to give yourself a buffer.

Local ordinances may require earlier close in some Montana cities. Know your local rule.

Section s2: Sealed-container rules (scope: state)

[text] Off-premise sales are **sealed-container only**. The customer leaves with an **unopened bottle, can, growler, or pre-packaged unit**. You cannot fill a personal flask, cup, or open container at the register. The customer also **cannot consume on the premises** — that would require an on-premise license.

[list/bullet] Sealed-container rules • **Bottles, cans, kegs, six-packs, 12-packs, cases** — all sealed at the manufacturer or distributor. Standard product, no issues. • **Growlers and crows** are allowed only if the licensee is **specifically authorized** to fill and sell them and follows Montana sealing, labeling, and packaging rules. If your store does not have a program approved by management for growler/crowler fills, do not fill personal containers or open containers. • **Customer's own flask/cup** — never. You don't fill personal containers at an off-premise license, even if the customer asks nicely. • **Tasting samples** are not allowed unless the licensee has a specific license, endorsement, or authorization for sampling. Do not offer samples unless management has confirmed the activity is lawful.

Section s3: No-below-posted-price rule (scope: state)

[text] Montana licensees **cannot sell alcohol below the posted price**. The posted price is the legal floor.

[list/bullet] What's banned at off-premise • **"Two for one"** beer or wine specials • **"Buy one get one free"** on any alcohol product • **"Free six-pack with a hot dog"** or any free-with-purchase combo where the alcohol is the freebie • **"\$5 off if you buy 4 cases"** unless the discount IS the new posted price for that quantity • **Any alcohol promotion** the licensee hasn't confirmed complies with Montana posted-price/advertising/DOR rules

[callout/info] **What's typically allowed (verify with licensee).**

• **Posted-price specials** — the special price IS the posted price for that hour • **Quantity discounts** that are properly posted (e.g., "case price = \$4 off the per-12-pack price") • **Charity-event pricing** with documented charity beneficiary

Montana alcohol promotions must comply with the posted-price rule, advertising rules, and any DOR/CARD requirements. Do not run BOGOs, free-drink campaigns, or alcohol-included promotions unless the licensee has confirmed the promotion is lawful — and, where required, secured any necessary approval in advance. When in doubt, ask the licensee.

Section s4: HB 211 third-party delivery overlay (scope: state)

State note: Required for any off-premise retailer using DoorDash, Uber Eats, Instacart, or Grubhub for alcohol fulfillment.

[text] If your store fulfills alcohol orders via **DoorDash, Uber Eats, Instacart, or Grubhub, HB 211** (effective **January 1, 2026**) created a separate licensing and training framework. Off-premises retailers still have compliance responsibilities when fulfilling alcohol orders through a third-party platform — do not assume the platform alone handles every requirement.

[list/bullet] Delivery rules to know • **Beer and table wine ONLY.** No spirits via third-party delivery • **Driver must be 21+** and hold a valid driver's license. HB 211 also imposes background-check standards (e.g., no recent felony or DUI within a defined lookback period) — confirm current driver-eligibility criteria with CARD before relying on a specific number. • **Delivery hours** must fall within the time window allowed by HB 211 and CARD rules. Delivery is tied to the licensed retailer's sales window and may extend briefly after the retailer's sales cutoff — confirm the current rule before relying on a specific minute. • **ID-scanning at delivery** (the platform's tech does this; your store's responsibility is to verify the order is properly tagged for alcohol) • **Refuse delivery to intoxicated recipients** or unmarked addresses / PO boxes • **Alcohol must be transported separately from the driver's reach during transit** (storage rules apply during delivery). • **Drivers complete delivery-specific training.** Note: this off-premises RASS course is for store cashiers and clerks at licensed retailers, not for third-party delivery drivers. Confirm with CARD whether a driver needs a delivery-track training program in addition to or instead of this course.

[callout/info] **What the store cashier needs to know about HB 211.**

When you pack a third-party-delivery order:

- **Confirm the order is alcohol-tagged** in the platform's system (so the driver knows to ID-check) • **Sealed-container only** — no opened or partial packs • **No spirits** — if the order has spirits, refuse the order in the platform; spirits are not deliverable • **Note any unusual order patterns** (same address ordering 5 times in a week, requests to deliver to a parking lot) and flag the manager

Section s5: Two scenarios (scope: state)

[scenario] Q: What's the right call? - Ring it up — it's still before 2 a.m. ✓ correct — feedback: Right, narrowly. The sale is allowed up to 2:00 a.m. Practical advice: stop ringing at 1:55 to give a buffer. Once it's 2:00, no more alcohol on receipts. - Refuse — it's too close to 2 — feedback: The sale at 1:58 is legal. Refusing legal sales is its own customer-service problem. The fix is the 1:55 stop-ring policy, not refusing in the legal window. - Ring it up but mark the receipt 'after hours' — feedback: Wrong. The receipt time is the receipt time. Marking it 'after hours' doesn't change the legal status. - Tell the customer to drink it in the parking lot since the store is about to close — feedback: Wrong. Off-premise sales are sealed-container only. Suggesting on-premise consumption violates the license type.

[scenario] Q: What do you do? - Pack everything; the platform handles compliance — feedback: Wrong. HB 211 limits third-party delivery to beer and table wine ONLY. Spirits are not deliverable. Off-premises retailers still have compliance responsibilities when fulfilling alcohol orders through a third-party platform — do not assume the platform alone handles every requirement. - Refuse the spirits in the platform; pack the beer + chips; alert the manager that the order had a spirits line ✓ correct — feedback: Right. Spirits aren't deliverable under HB 211. Pull the spirits line in the platform's UI, complete the rest of the order, and tell the manager. If it keeps happening, the manager calls DoorDash support to fix the

menu. - Pack the vodka in a paper bag without labeling so the driver can decide — feedback: Wrong. The store knows the spirits are in the order. Hiding the line doesn't move the legal exposure off the store; it adds a fraud problem. - Cancel the entire order — feedback: Optional but heavy-handed. The right move is to refuse the spirits line and complete the rest if the platform allows partial fulfillment. Cancel only if the platform won't allow the partial.

Module quiz

Quiz: Module 6 Quiz (pass 80%) Qq1: Off-premise alcohol sale hours under MCA 16-3-304: a) Midnight to 6 a.m. b) 8 a.m. to 2 a.m. ✓ c) 10 a.m. to midnight d) 9 a.m. to 1 a.m. Qq2: Off-premise retailers can let customers consume the alcohol on the store premises. true) True false) False ✓ Qq3: Under HB 211, third-party delivery may include: a) Beer and table wine only ✓ b) Spirits only c) All alcohol d) Anything in inventory Qq4: Where do you go in Montana to buy distilled spirits off-premise? a) Any grocery store b) Any c-store c) Agency liquor store ✓ d) Wholesale distributor Qq5: Montana lets a c-store run a 'two cans for the price of one' beer promotion. true) True false) False ✓ Qq6: What is a practical store-policy cutoff to avoid an after-hours alcohol sale at 2:00 a.m.? a) 1:30 a.m. b) 1:55 a.m. ✓ c) 1:59 a.m. d) 2:00 a.m. Qq7: A DoorDash order from your store includes a 750mL bottle of vodka. The right call is: a) Pack it; the platform handles compliance b) Refuse the spirits line; pack the rest ✓ c) Pack it without labeling d) Cancel the whole order Qq8: Name two HB 211 third-party delivery rules that off-premise retailers must follow. keywords: beer, table wine, no spirits, 21, valid DL, driver's license, ID scanning, delivery hours, refuse intoxicated, approved address, training, delivery training

Final exam pool (40 questions)

Title: Montana RASS Off-Premises: Final Exam **Pass:** 80% · **Per attempt:** 25 of 40 **Selection:** Each attempt draws 25 questions from the 40-question pool, ensuring every Performance Outcome and every module is covered. Tests applied understanding of off-premises sales — what to do at the register — not memorization of citation numbers.

Pool:

- **MTOFF-001** (module 01, outcomes K1): Q: Under HB 157, the Montana on-premises RASS track requires 120 minutes minimum. The off-premises track requires: a) 30 min b) 60 min ✓ c) 90 min d) 120 min explanation: HB 157 sets the off-premises track at 60 minutes (half of on-premises 120 min) — recognizing the simpler register-side workflow.
- **MTOFF-002** (module 01, outcomes K1): Q: Under MCA 16-4-1005, a Montana c-store clerk passes RASS training on June 15, 2026. By when must she renew? a) June 15, 2027 (1 yr) b) June 15, 2028 (2 yr) c) June 15, 2029 (3 yr) ✓ d) June 15, 2031 (5 yr) explanation: MCA 16-4-1005: renewal every 3 years for both on- and off-premises tracks.
- **MTOFF-003** (module 02, outcomes K3): Q: Under MCA 16-1-106(4), a customer at the c-store hands you a kombucha labeled 0.4% ABV. Do you treat it as alcohol requiring an ID check? a) Yes — any fermented drink counts b) Yes — 0.4% is above the threshold c) No — 0.4% is below the 0.5% statutory floor ✓ d) Yes — kombucha always counts explanation: MCA 16-1-106(4): a beverage is

'alcoholic' at >0.5% ABV. 0.4% is below the floor — no ID check required, no off-premise sale restrictions apply.

- **MTOFF-004** (module 02, outcomes K4): Q: Under MCA 16-3-301(4)(b), what's Montana's standard for refusing an alcohol sale at the register? a) BAC over 0.08 b) Actually, apparently, or obviously intoxicated ✓ c) Visibly impaired only d) Cannot drive explanation: MCA 16-3-301(4)(b) — Montana's three-part standard. Same standard applies on- and off-premise.
- **MTOFF-005** (module 02, outcomes K4): Q: Which is NOT a register-side intoxication cue? a) Slurred speech b) Difficulty counting change c) Asking for a different brand ✓ d) Strong alcohol smell explanation: Brand preferences aren't a cue. The other three (slurred speech, difficulty handling money, alcohol smell) are.
- **MTOFF-006** (module 02, outcomes K4): Q: If a customer at the register seems intoxicated but says 'I'm fine,' you may still complete the sale. a) True b) False ✓ explanation: The customer's statement does not override what you can observe. Behavior is the test.
- **MTOFF-007** (module 03, outcomes K5): Q: A customer hands you four IDs at the register. Under ARM 42.13.902, which one is NOT acceptable? a) Current Canadian driver's license b) US passport card c) Photocopy of an ID ✓ d) Montana tribal ID explanation: ARM 42.13.902 requires the original credential. Photocopies never count, regardless of how clear they are.
- **MTOFF-008** (module 03, outcomes K5): Q: Montana's HB 196 (effective October 1, 2025) added a new acceptable ID type. What was added? a) School IDs b) Government-certified digital IDs ✓ c) Voter cards d) Library cards explanation: HB 196 added government-certified digital IDs (Apple Wallet / Google Wallet / state app). Screenshots and photos still don't count.
- **MTOFF-009** (module 03, outcomes P2): Q: If today is May 8, 2026, what's the latest legal date of birth for a customer to be 21? a) May 8, 2004 b) May 8, 2005 ✓ c) January 1, 2005 d) May 8, 2006 explanation: Today minus 21 years. Anyone born on or before May 8, 2005 has turned 21 today.
- **MTOFF-010** (module 03, outcomes P1): Q: A screenshot of a state ID counts as a valid digital ID under HB 196. a) True b) False ✓ explanation: HB 196 requires the credential to come from a government-certified app — not an image stored in the camera roll.
- **MTOFF-011** (module 03, outcomes P1): Q: When inspecting a physical ID at the register, which is a fake-ID red flag? a) Sharp corners b) Lamination peeling at edges ✓ c) Hologram shifts in light d) Photo matches the customer explanation: Peeling lamination is a tampering indicator. The others are normal traits of a valid ID.
- **MTOFF-012** (module 03, outcomes K6): Q: Which is a common off-premise underage tactic? a) Wearing a tie b) Borrowing an older sibling's ID ✓ c) Sitting outside for 30 minutes d) Asking the price explanation: Borrowed-ID is the most common off-premise underage tactic. Compare the photo to the person carefully.
- **MTOFF-013** (module 03, outcomes K5): Q: Under ARM 42.13.902, an armed-services ID is acceptable for verifying age at a Montana register. a) True ✓ b) False explanation: ARM 42.13.902 lists armed-services IDs as acceptable.

- **MTOFF-014** (module 04, outcomes K7): Q: Under ARM 42.13.101, a c-store has just been cited for its FIRST sale-to-minor offense within a 3-year window. What's the administrative fine? a) \$100 b) \$250 ✓ c) \$500 d) \$1,000 explanation: ARM 42.13.101 progressive schedule: 1st = \$250; 2nd = \$1,000; 3rd = \$1,500 + suspension; 4th = revocation.
- **MTOFF-015** (module 04, outcomes K7): Q: Under ARM 42.13.101, a c-store has now had four sale-to-minor offenses within 3 years. What administrative consequence applies? a) \$5,000 fine b) License revocation ✓ c) 30-day suspension d) Mandatory retraining explanation: Fourth offense in 3 years = revocation. The escalation pattern is the deterrent.
- **MTOFF-016** (module 04, outcomes P3): Q: A 30-year-old at the register tells you the beer is for their 19-year-old nephew waiting in the car. The buyer is over 21, so you can complete the sale. a) True b) False ✓ explanation: Once the customer announces intent to provide alcohol to someone underage, the sale is unlawful — proxy-buyer admission. Refuse and document.
- **MTOFF-017** (module 04, outcomes K6): Q: Which is a 'shoulder-tap' red flag at an off-premise retailer? a) An adult is asked at the door 'go in for me' ✓ b) An adult walks in alone c) An adult buys one beer d) An adult uses a credit card explanation: Shoulder-tap pattern: minors hang outside and ask an adult entering the store to buy for them. If you spot it, refuse.
- **MTOFF-018** (module 04, outcomes K7): Q: Under MCA 16-6-305, what's the maximum personal criminal penalty a clerk who sells alcohol to a minor can face? a) Up to \$500 fine and/or 6 months jail ✓ b) \$1,000 fine only c) Loss of driver's license d) Probation only explanation: MCA 16-6-305: criminal misdemeanor with up to \$500 fine and/or 6 months jail. Personal liability separate from any administrative action against the licensee.
- **MTOFF-019** (module 05, outcomes K8): Q: Under MCA 27-1-710, which is NOT one of the three dram shop triggers? a) Sale to a minor with no reasonable age check b) Sale to a visibly intoxicated person c) Customer drove home after their purchase ✓ d) Forced or coerced consumption explanation: Driving home alone is not a trigger. The three triggers are: sale-to-minor (no check), service-to-visibly-intoxicated, forced consumption.
- **MTOFF-020** (module 05, outcomes K8): Q: Off-premise retailers are subject to MCA 27-1-710 dram shop liability under the same triggers as on-premise. a) True ✓ b) False explanation: MCA 27-1-710 applies to ANY licensee. Same three triggers, same exposure.
- **MTOFF-021** (module 05, outcomes K8): Q: Under MCA 27-1-710(10), a Montana jury awards \$400,000 in noneconomic damages in a dram shop case against a c-store. After the statutory cap, how much can the plaintiff collect for noneconomic damages? a) \$50K b) \$100K c) \$250K (the statutory cap) ✓ d) Full \$400K (no cap) explanation: MCA 27-1-710(10): noneconomic damages capped at \$250K per dram shop event. Economic damages (medical, lost wages) are not capped.
- **MTOFF-022** (module 06, outcomes K9/P5): Q: Under MCA 16-3-304, your c-store opens at 6 AM. When can you actually start selling alcohol? a) 6 AM (when the store opens) b) 7 AM c) 8 AM ✓ d) 9 AM explanation: MCA 16-3-304: alcohol-sales window is 8 AM to 2 AM. Even if the store opens earlier, no alcohol sales until 8 AM.

- **MTOFF-023** (module 06, outcomes K9): Q: Off-premise retailers may let customers consume their purchase on the store premises. a) True b) False ✓ explanation: Off-premise = takeaway only. Allowing on-site consumption changes the license type and is a violation.
- **MTOFF-024** (module 06, outcomes K10): Q: Under HB 211, your delivery app shows three orders to be picked up: a 6-pack of beer, a bottle of vodka, and a bottle of table wine. Which can a third-party driver legally bring? a) All three b) Only the vodka c) Only the beer and the wine — HB 211 limits to beer + table wine ✓ d) None — HB 211 banned third-party delivery explanation: HB 211 explicitly limits third-party alcohol delivery to beer and table wine. Spirits cannot go through third-party delivery.
- **MTOFF-025** (module 06, outcomes K9): Q: Under MCA 16-2-101, where in Montana can a customer buy distilled spirits to take home? a) Any grocery store b) Any c-store c) Agency liquor stores (state-contracted retailers) ✓ d) Wholesale only explanation: MCA 16-2-101: distilled spirits sold off-premise ONLY through agency liquor stores. C-stores and grocery stores can sell beer and table wine (wine containing less than 16% ABV) but not spirits.
- **MTOFF-026** (module 06, outcomes K9): Q: Montana c-stores can run 'two-for-one' beer promotions as long as they're not advertised. a) True b) False ✓ explanation: Montana's no-below-posted-price rule prohibits two-for-one and similar promotions, advertised or not.
- **MTOFF-027** (module 06, outcomes K10): Q: Under HB 211, a 19-year-old applies to be a third-party alcohol delivery driver. Is she old enough? a) Yes — 18 is the minimum b) No — HB 211 requires drivers to be 21+ ✓ c) Yes — 19 is fine for beer/wine d) No — HB 211 requires drivers to be 25+ explanation: HB 211 requires third-party alcohol delivery drivers to be 21 or older.
- **MTOFF-028** (module 02, outcomes K2): Q: A regular heavy drinker who 'doesn't look drunk' is safe to sell alcohol to. a) True b) False ✓ explanation: Tolerance is not a legal defense. Behavior is the test, not appearance or familiarity.
- **MTOFF-029** (module 02, outcomes K4/P4): Q: A customer at the register has a strong smell of alcohol on their breath, an unsteady gait, and is slurring slightly. What's the right move? a) Sell the alcohol; they didn't ask for help b) Refuse the sale, calmly explain, and document in the incident log ✓ c) Call the police on the spot d) Make them solve a math problem explanation: Refusal + documentation is the right move under MCA 16-3-301(4)(b). Police escalation is rare and usually unnecessary.
- **MTOFF-030** (module 03, outcomes P1): Q: A customer hands you their phone showing a screenshot of their state ID. What do you do? a) Accept it, the photo is clear b) Ask them to present the official credential through Apple Wallet, Google Wallet, or the state's app ✓ c) Take a new screenshot for your records d) Sell only beer explanation: A screenshot is not a digital ID under HB 196. The credential must come from a government-certified app.
- **MTOFF-031** (module 03, outcomes K5): Q: A 22-year-old's Montana driver's license expired yesterday. What do you do? a) Sell, the expiration is recent b) Refuse — expired IDs are not acceptable under ARM 42.13.902 ✓ c) Sell only beer d) Sell only sealed-container beverages

explanation: ARM 42.13.902 requires a current/valid ID. Expired is expired — refuse and ask for a different valid form.

- **MTOFF-032** (module 04, outcomes K7): Q: Under MCA 16-6-305, a clerk who personally sells alcohol to a minor faces what? a) Up to \$500 fine and/or 6 months jail (criminal misdemeanor) ✓ b) \$1,000 fine only, no jail c) Driver's license suspension d) Probation only explanation: MCA 16-6-305: criminal misdemeanor with up to \$500 fine, up to 6 months jail, or both.
- **MTOFF-033** (module 04, outcomes P3/K6): Q: A 30-year-old says at the register: 'this 12-pack is for my buddy waiting in the car, here's his money.' What's your best move? a) Sell, the buyer is over 21 b) Refuse — this is a proxy-buyer admission and the sale is unlawful ✓ c) Sell at half price as a courtesy d) Sell only the buyer's portion explanation: Once the customer announces intent to provide alcohol to someone in the car (whose age you haven't verified), the sale is unlawful. Refuse and document.
- **MTOFF-034** (module 05, outcomes K8): Q: Under what circumstances do off-premise retailers face MCA 27-1-710 dram shop liability? a) Never — only on-premise establishments b) When one of the three triggers is met (underage sale with no check, sale to visibly intoxicated, forced consumption) ✓ c) Any time a customer they sold to later causes injury d) Only when the customer was at the store for 30+ minutes explanation: MCA 27-1-710 applies to ANY licensee. The three triggers are the same regardless of license type.
- **MTOFF-035** (module 06, outcomes K9): Q: May a Montana c-store sell distilled spirits? a) Yes, with a standard off-premise license b) Only with a special permit c) No — under MCA 16-2-101, off-premise spirits are sold only at agency liquor stores ✓ d) Only on weekdays explanation: MCA 16-2-101: distilled spirits are sold off-premise ONLY through agency liquor stores. C-stores and grocery stores can sell beer and table wine (wine containing less than 16% ABV) but not spirits.
- **MTOFF-036** (module 06, outcomes K10): Q: Under HB 211, may a third-party delivery driver deliver vodka? a) Yes, all alcohol b) No — HB 211 limits third-party delivery to beer and table wine only ✓ c) Only with employer permission d) Only if the driver is 30 or older explanation: HB 211 explicitly limits third-party alcohol delivery to beer and table wine only.
- **MTOFF-037** (module 06, outcomes K9/P5): Q: A customer wants to buy beer at 2:15 a.m. at a c-store. Under MCA 16-3-304, may you sell? a) Yes, until 3 a.m. b) No — the off-premise sale window closes at 2 a.m. ✓ c) Yes, with manager approval d) Only sealed beer until 3 a.m. explanation: MCA 16-3-304: all licensed retail closed for alcohol sales 2 a.m. to 8 a.m. daily. No exceptions.
- **MTOFF-038** (module 02, outcomes K2): Q: Why does eating slow alcohol absorption? a) Food dilutes the drink chemically b) Food slows the rate at which the stomach empties into the small intestine, where most alcohol is absorbed ✓ c) Food makes the alcohol weaker d) Food has no effect on absorption explanation: Most alcohol is absorbed in the small intestine. Food in the stomach delays gastric emptying, slowing absorption.
- **MTOFF-039** (module 03, outcomes P2): Q: Today is May 8, 2026. A customer's ID shows a date of birth of May 9, 2005. Are they legal to buy alcohol today? a) Yes — they are 21 today b) No — they are still 20; they turn 21 tomorrow ✓ c) Yes — but only beer d) Only with manager approval

explanation: Today's date minus 21 years = May 8, 2005. Anyone born AFTER May 8, 2005 is still 20. May 9, 2005 is one day after the cutoff, so they turn 21 on May 9, 2026 (tomorrow). Refuse.

- **MTOFF-040** (module 04, outcomes K7): Q: Under ARM 42.13.101, what's the licensee fine for a 2nd sale-to-minor offense in any 3-year period? a) \$250 b) \$500 c) \$1,000 ✓ d) \$2,000

explanation: ARM 42.13.101 progressive schedule: 1st = \$250, 2nd = \$1,000, 3rd = \$1,500 + suspension, 4th = revocation.